



File No. EXP202203648 (PD/00142/2022)

Examined the appeal for reconsideration filed by A.A.A. (hereinafter the claimant or appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection in file PD/00142/2022, and based on the following

FACTS

FIRST: A.A.A. (hereinafter the claimant or appellant), on 17/02/2022, filed a complaint with the Spanish Agency for Data Protection, directed against the entity FISCALÍA GENERAL DEL ESTADO (hereinafter FGE or the respondent), with NIF S2800661G, for the “total or partial unjustified” denial of the right of opposition exercised before said entity on 24/01/2022. In said complaint, the claimant highlighted the following facts:

“On 24/1/2022, I exercised my right of opposition before the data protection officer of the Fiscalía General del Estado regarding the use of cookies on the portal www.fiscal.es. On 28/1/2022, the DPD of the FGE indicated that I would receive a response from the Support Unit, which I have received today, 17/2/2022. Although the mentioned communication acknowledges that 'Thanks to your communication, we have detected the discrepancies and errors existing in the legal notice clauses of the portal and we have initiated the process to resolve these issues in the contents of the portal as soon as possible, and therefore provide the correct information and request the necessary express consents that apply,' it does not adequately address my request for opposition, limiting itself to stating that 'no personal data of yours has been collected or stored by virtue of accessing the portal [fiscal.es](http://www.fiscal.es), thus responding to your exercise of the right of opposition to the processing.' The aforementioned website continues to use cookies that may be making unauthorized use of my personal data merely by continuing to browse the website. It has also not justified that the personal data collected by the cookies used on the website www.fiscal.es do not involve international transfer to third countries, or that, if applicable, measures have been adopted to ensure the adequate protection of my personal data in the event of such international transfer.”

With their complaint, they provide the following documentation:

1. Email dated 24/01/2022, sent by the claimant to the address

“fge.delegadoprotecciondatos@fiscal.es,” with the subject “Exercise of the right of opposition” and the following text:

“I come to exercise the right of opposition against the processing of my personal data by the website of the Public Prosecutor's Office <https://www.fiscal.es> for including in its legal notice the information regarding the use of cookies (cookie policy) accessible at <https://www.fiscal.es/web/fiscal/aviso-legal>.

'Acceptance of the Cookie Policy

If you continue browsing the website of the Public Prosecutor's Office, it is assumed that you accept the use of cookies. However, information about the Cookie Policy is displayed at the bottom of any page of the portal that you visit so that you are aware.”

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Such processing infringes the correct interpretation of the consent of the data subject made by the European Data Protection Committee by assuming such consent through mere navigation on the website, without requiring any action from the data subject.

Furthermore, its cookie policy informs of the use of third-party cookies for advertising purposes (specifically from Facebook) that involve the international transfer of personal data to third countries without meeting an adequate level of protection, which is why I also oppose the aforementioned processing.”

At the end of the text, the complainant indicates their name and two surnames, as well as their ID number. They also attach a copy of this document.

2. Response from the Data Protection Officer of the Public Prosecutor's Office (hereinafter DPD), dated 28/01/2022, acknowledging receipt of the request to exercise the right of opposition and informing the complainant that it will be answered by the Support Unit of the FGE. Additionally, the following is added:

"Likewise, you are informed that the Data Protection Officer has initiated actions to examine the compliance with data protection regulations of the information provided on the fiscal.es portal in the section "Cookie Policy" of the subpage "Legal Notice."

3. Communication sent to the complainant by the Support Unit of the FGE, dated 11/02/2022, which expressly states that this communication responds to the exercise of the right of opposition to the processing. The text of this communication is as follows:

"Having received your request to exercise the right of opposition to the processing of your personal data when accessing the portal of the Public Prosecutor's Office (fiscal.es), which you sent directly through the Data Protection Officer of the Public Prosecutor's Office, we present the following points:

- The use of cookies on this portal is motivated exclusively by the performance of analytical tasks to compute the number of accesses and the technical maintenance of the session, the latter being necessary for the proper functioning of the portal.
- Thanks to your communication, we have detected discrepancies and errors in the legal notice clauses of the portal and have initiated the process to resolve these issues in the contents of the portal as soon as possible, thereby providing the correct information and requesting the necessary express consents that apply.
- Therefore, we inform you that no personal data of yours has been collected or stored by virtue of accessing the portal fiscal.es, thus responding to your exercise of the right of opposition to the processing."

- "Legal notice" available on the website "fiscal.es." The section "Acceptance of the Cookie Policy" states:

"If you continue browsing the website of the Public Prosecutor's Office, it is assumed that you accept the use of cookies..."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), which has provided for a mechanism prior to the admission for processing of...

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the claims made before the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, the claim was forwarded to the entity being claimed against for it to proceed with its analysis and respond to the complainant and this Agency within a month. The transfer document details the facts that motivate the claim as follows:

"The complainant states that the exercise of the right to object to the processing of their personal data has not been satisfactorily addressed since the response received does not indicate anything regarding whether the entity's website continues to use cookies that make unauthorized use of their personal data merely by continuing to browse the website; and considers that it has also not been justified that the personal data collected by the cookies used do not constitute an international transfer to third countries, or that, in their case, measures have been adopted to ensure the adequate protection of their personal data."

THIRD: On 29/04/2022, a response letter from the DPD of the entity FGE was received by this Agency, in which the following is reported:

1. As a preliminary matter, it confirms the receipt of the request to exercise the right to object that was sent by the complainant and its content; the responses sent by the DPD and the Support Unit of the

FGE; the information provided through the cookie policy inserted on the website, which coincides with that indicated by the complainant in their claim; and the fact that when accessing the website "fiscal.es" no pop-up window related to the cookie policy or about the nature of those used by said portal was activated, in case the user continued browsing.

2. In light of all this, on 28/01/2022, it urged the Support Unit of the FGE to request the service administration (Ministry of Justice) to update the information provided on the website and specify the nature of the cookies, in order to know whether they require user consent and, if so, to enable means to correct this deficiency, so that consent can be duly given before accessing the website.

3. As reported in the "Legal Notice" inserted on the website "fiscal.es", the ownership of this domain corresponds to the Ministry of Justice, as the service provider of the Public Prosecutor's Office regarding said web portal. The Public Prosecutor's Office is only the generator of its content but is unrelated to its technological support.

The status of data controller of the Ministry of Justice results from the provisions of the Organic Law of the Judiciary when it states that the competent Administration must provide the Administration of Justice with the appropriate technological means to process personal data in accordance with legal and regulatory provisions, with the competent Administration being required to comply with the responsibilities attributed to it regarding the processing and protection of personal data as a service administration (art. 236 sexies).

The Ministry of Justice is the data controller of the personal data obtained through the cookies installed on the domain "fiscal.es" and it is to said

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Ministry responsible for fulfilling the obligations imposed by the GDPR, including those to provide information (art. 13) and respond to the exercise of rights (articles 15 to 22 of the GDPR).

4. In light of the above, the Support Unit of the Attorney General's Office addressed the Administrative Products Center of the General Subdirectorate for the Implementation and Development of Digital Services of the Ministry of Justice, as a result of which the Security Office of said Center proceeded to draft a proposal regarding the update of the informational texts that should appear in the sections related to the "legal notice," "privacy policy," and "cookie policy" of the portal "fiscal.es." Following the corresponding report from the Head of the Coordination Area of the Support Unit of the FGE, the aforementioned content was updated, which is currently reflected on the referred portal.

Furthermore, on 20/04/2022, the General Subdirectorate for the Quality of Digital Services, Cybersecurity, and Operations informed the Support Unit of the FGE that, following the prior communication sent by it, the third-party cookies, specifically from Google Analytics, had been disabled from the portal "fiscal.es," and that, as of 03/03/2022, only technical cookies necessary for the proper functioning of the portal were being used, which are internal and not transferred to third parties. Following the receipt of this information, on 21/04/2022, the aforementioned Support Unit again addressed the referred Subdirectorate urging the adoption of appropriate measures to terminate the processing of personal data that may have been transmitted to third parties from the date of entry into force of the current regulations until the effective disabling of the aforementioned cookies.

5. Regarding the response to the right of opposition exercised by the claimant, sent by the Support Unit of the FGE on 11/02/2022, it is indicated that this response was made under the erroneous belief that the Ministry of Justice, as the owner of the domain "fiscal.es" and therefore as the data controller, had adapted its cookie policy to the current regulations, with only the update of the informational content pending. However, once the existence of cookies that collected personal data was known, said unit proceeded to request the General Subdirectorate for the Quality of Digital Services, Cybersecurity, and Operations to cease the processing of such data. It is noted that the exercised right should have been attended to by the Ministry of Justice, as the owner of the domain "fiscal.es," and that in this regard, the Support Unit should have responded to the interested party.

6. Finally, the DPD indicates that he has again urged the Support Unit of the FGE to request from the

Ministry of Justice the following:

If there are currently cookies embedded in the domain "fiscal.es" that generate the processing of personal data of users, to take the appropriate measures so that consent can be expressed prior to access to the portal, in a free, specific, informed, and unequivocal manner, through a

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declaration or a clear affirmative action.

In the event that there is no processing of personal data and, therefore, user consent is not required, for reasons of transparency, it is recommended to inform, either in the cookie policy or in the privacy policy itself, about those cookies excluded from the scope of application of Article 22.2 of the LSSI, with a clause in the following terms:

"This website uses cookies that are exclusively technical in nature, which allow the functioning and provision of the services offered therein, and user consent is not required as no personal data is collected from them."

If there are cookies in the domain "fiscal.es" that involve the processing of personal data, a section should be included that provides the information required by Article 13 of the GDPR and clearly identifies the Ministry of Justice (or the corresponding department) as the data controller of the data collected through the aforementioned cookies.

FOURTH: On 17/05/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing due to the expiration of the three-month period without the decision on the admission or inadmissibility of the complaint having been notified to them.

FIFTH: By means of a letter dated 20/06/2022, the entity FGE was informed about the admission agreement, warning that it determined the opening of a rights procedure for a possible violation of the right to object to the processing of the personal data of the complainant. In the same letter, FGE was granted a period to submit allegations and provide any documents it deemed appropriate.

By mistake, it was indicated in that letter that the entity FGE had not responded to the transfer procedure.

SIXTH: On 05/07/2022, a letter was received from the DPD of FGE referring to its previous letter dated 29/04/2022. It only adds that the Ministry of Justice, as the competent administrative body for this matter, activated the pop-up window regarding cookie acceptance on the website "fiscal.es" on 10/06/2022.

SEVENTH: On 06/07/2022, the allegations presented by the respondent were forwarded to the complainant for them to submit their own allegations.

On the same date, a letter of allegations was received from the appellant in which they state the following:

Regarding the responsibility of the Ministry of Justice alleged, the complainant points out "that in the legal notice of the website www.fiscal.es, attached as a document to the complaint of this interested party before the AEPD, it was indicated in the section 'Privacy' that 'The Public Prosecutor's Office is responsible for the processing of the data'."

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personal data collected and/or provided by the interested parties through the portal www. Fiscal.es".

Following the complaint submitted by this interested party, changes have been made to the aforementioned legal notice, which now includes a link to a new privacy policy page identifying the Ministry of Justice as the data controller".

In the response to the transfer letter, it is indicated that third-party cookies, specifically Google Analytics, have been disabled, and that as of 03/03/2022, only technical cookies that are not

transferred to third parties are used. In this regard, the complaining party points out that, notwithstanding that the third-party cookies mentioned in the legal notice attached to their complaint only referred to those of Facebook and Twitter, the previous statement constitutes an explicit acknowledgment of the use of third-party cookies.

The reporting DPD has not made any allegations regarding the potential illegality of the international data transfers resulting from the use of the aforementioned cookies.

EIGHTH: On 08/08/2022, a resolution was issued by the Director of the Spanish Data Protection Agency in file PD/00142/2022, in which it was agreed to dismiss the complaint filed by the complaining party against the entity FGE. In this resolution, it was taken into account that the right to object was responded to by communication dated 11/02/2022, and it was concluded that the responding party acted in accordance with the regulations.

NINTH: The resolution now being appealed was duly notified to the complaining party on 05/09/2022, as evidenced by the notification receipt.

TENTH: On 16/09/2022, within the established timeframe, the complaining party submitted a motion for reconsideration against the resolution dated 08/08/2022, requesting its revocation and the acceptance of the complaint filed, in accordance with the following considerations:

- Nullity of the contested resolution due to the manifest and documented falsehood (not error) of the facts on which it is based:

The assertion contained in the contested resolution, according to which the complaint arises from the absence of a response, is completely false, as it explicitly refers to both the response from the DPD of the responding party dated 28/1/2022 and the reply from the Support Unit dated 17/02/2022, which was even attached to the complaint submitted to the AEPD. From the content of the complaint, it is manifest and explicit that it does not arise from a lack of response from the responding party, but from a response that is unsatisfactory or insufficient, as it does not address the right to object exercised by the interested party. The complaint itself was classified in the subcategory "The objection has been denied in whole or in part without justification".

- The appealed resolution indicates in its Fifth Legal Basis that a delay in the entry and registration of documentation may have been the cause of the admission of the complaint for processing, when it is manifest and documented that such admission occurred, with total certainty, as a result of the passage of the imperative deadline.

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provided for in Article 65 of the LOPDGDD, without any record of having been subject to appeal or review by the AEPD.

The arbitrariness of the resolution subject to the appeal also derives from the absence of any motivation regarding the factual and legal reasoning by which it considers that the letter sent by the respondent on 11/02/2022 or the communication of 29/04/2022 addresses the requested right; and for not making any consideration or response regarding the reasons alleged in the complaint and in the subsequent hearing process.

It reiterates that the responses received are not adequate nor do they satisfy the exercise of the right to object; that the respondent acknowledges the use by the portal "fiscal.es" of third-party cookies until 03/03/2022 (and not only those acknowledged in its legal notice, but also those of Google Analytics, which were not mentioned); and that at no time has it demonstrated the legality of the use of the aforementioned third-party cookies nor that it has communicated to those third parties to cease the use of the personal data provided by the portal until the aforementioned date of 03/03/2022.

ELEVENTH: The appeal submitted by the complainant was forwarded to the entity FGE for it to make allegations in this regard. For this reason, on 03/11/2022, the entity submitted a document stating the following:

- The exercise of the right was responded to on 11/02/2022, which should have determined the inadmissibility of the complaint.

- The complaint was admitted for processing due to the lack of response to the transfer procedure, despite the fact that this procedure was responded to by the entity FGE on 29/04/2022.
- It reiterates that the domain "fiscal.es" is owned by the Ministry of Justice, as stated in the "Legal Notice" of the page itself. FGE is only responsible for generating the content of the website, but is unrelated to its technological support. It is the Ministry of Justice that provides the necessary material means for the activity of the entity FGE.
- FGE, aware of the circumstances that motivated the exercise of the right by the appellant, applied the technical and organizational measures within its reach, requesting the competent administration to fulfill its obligations.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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II

Preliminary Issues

This procedure aims to examine the complaint filed before this AEPD by the complainant, related to the right to object exercised against the entity FGE, which, in the opinion of the complainant, was not duly addressed.

The exercise of the right to object is related to the processing of personal data involved in the use of cookies by the website "fiscal.es", making it advisable, first, to determine the condition under which the respondent entity intervenes.

The figures of "data controller" and "data processor" are defined in Article 4 of the GDPR as follows:

- "Data controller: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States."

- "Data processor: the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller."

The concepts of data controller and data processor are not formal but functional and must address the specific case.

The data controller is one who decides the purposes and means of the processing, not losing that status by allowing a certain margin of action to the data processor or by not having access to the databases of the processor.

This is unequivocally expressed in the Guidelines 07/2020 of the European Data Protection Board (EDPB) on the concepts of data controller and processor in the GDPR:

"A data controller is one who determines the purposes and means of the processing, that is, the why and how of the processing. The data controller must decide on both purposes and means. However, some more practical aspects of implementation ('non-essential means') can be left to the data processor. It is not necessary for the controller to actually have access to the data being processed to qualify as a controller" (unofficial translation).

Determining who decides the means and purposes of data processing is crucial for establishing who is responsible for compliance with personal data protection regulations, and in particular who must provide information to individuals.

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interested parties or attend to the rights of the interested party, etc.

In the present case, it is established that the entity FGE is responsible for the processing of personal data arising from the use of the website “fiscal.es”, contrary to what the entity stated in its written allegations, according to which the ownership of the domain corresponds to the Ministry of Justice, as the “service administration regarding the aforementioned website, with the entity FGE solely responsible for generating its content. In relation to the provision by the competent Administration to the Administration of Justice of the appropriate technological means for the processing of personal data, the entity FGE cites in its allegations the Organic Law of the Judiciary and Instruction 2/2019, of December 20, from the Attorney General's Office, regarding data protection in the field of the Public Prosecutor's Office.

This allegation contrasts with the information provided in the “Legal Notice” included on the website “fiscal.es”, in its currently valid version, modified on 02/22/2022. Therefore, this was prior to the submission of allegations by the entity FGE.

As the appealing party rightly points out in its allegations, the indicated “Legal Notice” includes a section “Privacy” with a link to the “Privacy Policy” of the website, in which the “Public Prosecutor's Office, represented by the Support Unit of the Attorney General's Office” is identified as responsible for the processing of personal data; and the “Ministry of Justice, General Directorate of Digital Transformation of the Administration of Justice” as the processor, regarding the “provision of management and maintenance services for the portal.”

The status of the Ministry of Justice as the processor is also established in the seventh additional provision of Royal Decree 453/2020, of March 10, which develops the basic organizational structure of the Ministry of Justice, and modifies the Regulation of the Legal Service of the State, approved by Royal Decree 997/2003, of July 25, according to the modification approved by Royal Decree 1040/2022, of December 27:

“1. In the processing of personal data in the digital applications and services designed, developed, or maintained by the General Directorate of Digital Transformation and that have been created or implemented within the scope of the competencies of the Ministry of Justice, and made available to Courts, Tribunals, Public Prosecutor's Offices, judicial and prosecutorial offices, technical auxiliary bodies of the Administration of Justice, administrative units, bodies, and agencies of the department, as well as other Administrations, entities, and public institutions by virtue of adhesion procedures or other instruments of the same nature provided for in current legislation, the Ministry of Justice, through the General Directorate of Digital Transformation of the Administration of Justice, shall be considered as the “Processor”, corresponding to them the status of “Controller”, in application of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, Organic Law 6/1985, of July 1, of the Judiciary, and Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and the execution of criminal sanctions.

2. In its capacity as processor and in accordance with the provisions of Article 28.3 of the

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Regulation (EU) 2016/679, the General Directorate of Digital Transformation of the Administration of Justice:

a) Will process personal data according to the instructions of the bodies and organizations to which the

digital applications and services are made available.

- b) Will ensure that individuals authorized to process personal data are bound by confidentiality obligations, maintain professional secrecy regarding the same, and do not disclose them to third parties, except in cases where such disclosure is required in strict compliance with the law.
- c) Will assist the body or organization, through appropriate technical and organizational measures and whenever possible, to fulfill its obligation to respond to requests aimed at exercising the rights of the data subjects established in Chapter III of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data.
- d) At the conclusion of the provision of digital applications and services, will facilitate the return of the data to the body or organization, in accordance with the technical specifications established by the Ministry of Justice.
- e) Will provide the beneficiary body or organization with all necessary information to demonstrate compliance with the obligations established in Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as to enable and contribute to the conduct of audits, including inspections, by the body or organization or by another auditor authorized by it.”

Prior to the allegations of the responding party is also Instruction 2/2019, which likewise expresses the entity's status as the data controller and its obligation to address the rights of the data subjects:

“6. The identification of the data controller in the scope of the Public Prosecutor's Office.

(...)

In the scope of the Public Prosecutor's Office, it is necessary to clearly and unambiguously identify the data controller, in order to sufficiently guarantee compliance with data protection regulations and the exercise of such rights; the application of these regulations, on the other hand, must take into account the nature and structure of the Public Prosecutor's Office.

In our legislation, there is no explicit assignment of data processing responsibility to the Public Prosecutor's Office; however, this can be inferred by following various criteria.

As we have indicated, the GDPR states that the data controller is the one who determines the purposes and means of processing.

In the case of the Public Prosecutor's Office, the purposes of processing, that is, why it is carried out, are determined by the constitutionally and legally assigned missions (defined in Article 124 of the Spanish Constitution and in the Organic Statute of the Public Prosecutor's Office) or by the obligations it must fulfill in the exercise of its functions (for example, maintaining a register of members of the Public Prosecutor's Office). Precisely, from this reality it follows that the basis for the processing carried out by the Public Prosecutor's Office is “the performance of a function carried out in the public interest or in the exercise of public powers conferred on the institutions and bodies of the Union” or “the fulfillment of a legal obligation applicable to the data controller” (Articles 6 GDPR and 8.1 LOPDGDD).

The determination of the means involves, following the considerations of the Article 29 Working Party, deciding how the processing activities are carried out. The means “not only refer to the technical means for processing personal data but also to the ‘how’ of the processing, which includes questions such as what data should be processed?, which third parties should have access to this data? when should the data be deleted?, etc.”. Therefore, the determination of the means includes technical and organizational questions.

However, the determination of the means does not require the controller to assume the definition of all aspects related to them. It is possible that several agents participate in certain aspects, while the controller maintains its ability to organize and influence the manner.

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in which personal data is addressed. Certain issues may be delegated, for example, to the data processors, while the essential aspects remain reserved for the determination of the data controller. These circumstances are present in the activities of the Public Prosecutor's Office (MF), as the determination of its means is conditioned by the fact that the Ministry of Justice or autonomous communities (hereinafter, CCAA) are responsible for providing the necessary material means for its activities.

Furthermore, although the definition of the software applications and their design and configuration (and, therefore, the determination of certain aspects regarding the processing carried out through them) involves the Attorney General's Office, through the Support Unit, the State Technical Committee for Electronic Administration (CTEAJE) is also currently involved, and it is subject to the aforementioned development and provision of means that must be carried out by the Ministry of Justice or the CCAA with assumed competencies in the field of justice administration. Currently, twelve CCAA have assumed competencies in this area.

As an additional criterion for identifying the data controller, it has already been mentioned that the GDPR states that "if the law of the Member States determines the purposes and means of processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States."

It is therefore advisable to examine the current regulations and the background regarding the determination of data protection controllers in the context of the MF to identify who has the capacity to organize the processing carried out within the MF, examining whether the current regulations indicate the individuals and/or bodies that must assume the responsibilities, focusing the issue from the functional concept of the controller developed by the GT 29. And at this point, it is essential to start from the Spanish Constitution (CE) and the Organic Law of the Public Prosecutor's Office (EOMF).

As already indicated, the right to data protection constitutes, based on Article 18.4 CE, an autonomous and specific fundamental right, which binds the MF, just as it does other public authorities (Article 53 CE), as it is an organ of constitutional relevance with its own legal personality and unique for the entire State, corresponding to the Attorney General of the State the superior leadership, "issuing the appropriate orders and instructions for the service and internal order of the institution and, in general, the direction and inspection of the Public Prosecutor's Office" (Article 22.2 EOMF).

This organizational capacity affects both the processing operations carried out in the public prosecutor's offices through the preparation of folders or paper files, as well as those carried out using certain software applications and the support of new technologies.

In its functions of direction and organization, the Attorney General's Office issues instructions and circulars indicating mandatory guidelines regarding the processing of personal data necessary for the exercise of certain functions of the MF. (...)

On the other hand, in the context of processing carried out through new technologies, Article 230.1 LOPJ, after stipulating the obligation of the public prosecutor's offices to use any technical, electronic, computer, and telematic means made available to them for the development of their activities and the exercise of their functions (...), adds that the general or specific instructions for the use of new technologies that (...) the Attorney General's Office directs to (...) the prosecutors, respectively, determining their use, will be mandatory. (...)

It follows from the cited provisions and these precedents that it is the responsibility of the MF, as an organ of constitutional relevance, to organize the processing that is carried out, always within its scope of action and competencies, and without prejudice to the involvement of other agents in certain aspects. (...)

7. Obligations of the Public Prosecutor's Office regarding data protection
(...)

7.2 Obligations of the Attorney General's Office.

To comply with the obligations imposed by these principles on the MF, the Attorney General of the State, holding the superior leadership and the highest representation of the MF (Article 13.1 and 22.2 EOMF), through the competent bodies and units of the Prosecutor's Office.

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The State General must essentially:

- a) Adopt appropriate technical and organizational measures to ensure and demonstrate that the processing is in compliance with the GDPR; these measures must be reviewed and updated as necessary (art. 24.1 GDPR).
- b) Adopt appropriate technical and organizational measures to protect the rights of the data subjects (art. 25.1 GDPR).
- c) Establish the necessary mechanisms and procedures to facilitate the exercise of rights by the data subjects, providing them with concise, transparent, intelligible, and easily accessible information, for which corresponding models or guides will be developed and made available to the public prosecutor's offices and the other bodies and units of the MF (art. 12 GDPR).

(...)

On the other hand, the actions that make up the administrative file demonstrate that the use of cookies by the website "fiscal.es" involves the collection of personal data from its users.

There are several statements made by the responding party in its various written submissions that admit this conclusion. This is evident (i) when the FGE itself considers updating the "cookie policy" and specifying the nature of the cookies in order to determine whether they require user consent; or (ii) when it is claimed that the Ministry of Justice is responsible for the processing of personal data obtained through cookies and is obliged to comply with the provisions imposed by the GDPR; (iii) also by noting that, once the existence of cookies that collected personal data was known, a request was made to cease the processing of such data and third-party cookies were disabled, specifically those from Google Analytics, so that from 03/03/2022 only technical cookies are used.

It is also well known, and this is stated in numerous resolutions issued by this Agency, available through the website "aepd.es", that Google Analytics cookies collect personal data from users, which are subject to international transfer.

Among these data are unique user identifiers (_ga and _gid), the IP address, as well as other data associated with the browser and the browsing itself or system information, among others.

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific factors relating to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

It should be noted that online identifiers, such as IP addresses or information stored in cookies, can commonly be used to identify a user, especially when combined with other similar types of information. This is illustrated in Recital 30 of the GDPR, according to which the assignment of online identifiers such as IP addresses, cookie identifiers to individuals...

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Physical persons or their devices can "leave traces that, particularly when combined with unique identifiers and other information received by the servers, can be used to create profiles of individuals and identify them." It should be noted that the CJEU has already stated that IP addresses are personal data (see case C-597-19, paragraph 102 and C-582/14, paragraph 49). The IP address does not lose its nature as personal data simply because the means of identification reside with third parties.

Furthermore, the case in question is very different, as the IP address can be combined with other elements.

Regarding unique identifiers, they are intended to differentiate individuals and make them identifiable. These identifiers can also be combined with other information, such as the address of the visited website, metadata related to the browser and operating system, the time and data related to the

website visit, and the IP address. This combination of information further differentiates individuals. That is to say, the combination of several elements may allow for the individual identification of visitors to the website "fiscal.es," where Google Analytics is implemented, regardless of whether these visitors can be identified through unique identifiers without the need for such a data combination.

Apart from this, in the event that any visitor to the website "fiscal.es" had logged into a Google account at the time of their visit, the implementation of Google Analytics on the website allows Google to receive information that a specific user connected to a Google account has visited that website.

Therefore, personal data related to this account is collected.

For all these reasons, it must be considered that the data in question are personal data in the sense of Article 4.1 of the GDPR.

All personal data collected through a website that integrates the Google Analytics function is transferred to Google's servers in the United States. Moreover, in the terms accepted by the holder of a website that incorporates this function, it is contemplated that Google may store and process personal data in any country where Google or any of its data processors maintain facilities.

III

Right to Object

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights to access, rectification, deletion, objection, the right to restrict processing, and the right to data portability are provided for.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Article 12 "Transparency of information, communication, and modalities of..."

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The exercise of rights" of the GDPR establishes the following:

"1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the data subject's rights under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act on the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is unable to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request in accordance with Articles 15 to 22, and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided in another manner."

4. If the data controller does not act on the data subject's request, it shall inform the data subject without delay, and no later than one month after receiving the request, of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and pursuing legal actions.

5. The information provided under Articles 13 and 14, as well as any communication and any actions taken under Articles 15 to 22 and 34, shall be provided free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may: a) charge a reasonable fee based on the administrative costs incurred to provide the information or communication

or to take the requested action, or b) refuse to act on the request. The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts regarding the identity of the natural person making the request referred to in Articles 15 to 21, it may request the provision of additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects under Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. The icons presented in electronic format shall be machine-readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons.”

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR). Furthermore, the data controller is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject; as well as to provide reasons in the event that it does not comply with the request.

From the above, it follows that the request for the exercise of rights made by the data subject must be answered in all cases, with the burden of proof of compliance with this duty resting on the data controller.

This obligation to act is not enforceable when the data controller can demonstrate that it is unable to identify the data subject (in the cases referred to in Article 11.2 of the GDPR). In cases other than those provided for in this article, where the data controller has reasonable doubts regarding the identity of the requester, it may require additional information necessary to confirm that identity.

In this regard, Recital 64 of the GDPR states the following:

“(64) The data controller must use all reasonable measures to verify the identity of data subjects who request access, particularly in the context of online services and online identifiers. The controller must not retain personal data for the sole purpose of being able to respond to potential requests.”

Regarding the right to object, the GDPR provides in Article 21 the following:

“1. The data subject shall have the right to object at any time, on grounds relating to his or her particular situation, to the processing of personal data concerning him or her which is based on Article 6(1)(e) or (f), including profiling based on those provisions. The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. Where the processing of personal data is for the purpose of direct marketing, the data subject shall have the right to object at any time to the processing of personal data concerning him or her for such marketing, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the rights referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical specifications.

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6. When personal data is processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89, paragraph 1, the data subject shall have the right, for reasons related to their particular situation, to object to the processing of personal data concerning them, unless such processing is necessary for the performance of a task carried out for reasons of public interest.

The data subject may exercise a series of rights before the data controller, including the right to object to the processing.

In this case, it is noted that the complainant formally addressed the entity FGE expressing their opposition to the processing of their personal data, without this entity providing an adequate response to the exercise of the right.

Obviously, since the entity FGE is the data controller, the right exercised by the complainant cannot be considered addressed, as this entity claims, with the response sent on 11/02/2022, in which the data subject is merely informed that FGE has not collected or stored any of their personal data.

It is an undisputed fact that the complainant exercised the right to object to the processing of their personal data before the entity FGE via email dated 24/01/2022, sent to the address

"fge.delegadoprotecciondatos@fiscal.es", nor is the subject of the right disputed, that is, the processing of personal data to which the complainant opposed.

In the very email exercising the right, the complainant expressly states that they oppose the processing of their personal data by the website "fiscal.es" resulting from the use of cookies, including third-party cookies for advertising purposes that involve the international transfer of personal data.

As evidence that this processing of personal data takes place, the complainant warns the responsible entity that the aforementioned website imposes the acceptance of the use of cookies simply by browsing the "fiscal.es" website, according to the information provided by the entity FGE itself in the "Legal Notice" included therein.

Likewise, it is evidenced in the proceedings that the entity FGE responded to the indicated request to exercise the right to object by means of a letter dated 11/02/2022. However, this response was limited to informing the complainant that "no personal data of theirs has been collected or stored by virtue of accessing the portal fiscal.es, thus responding to their exercise of the right to object to the processing," despite the proceedings having allowed verification that personal data of users of the website was indeed being collected, according to the details expressed in the previous Legal Basis.

This response to the right to object contrasts with other indications expressed by the entity FGE, both to the appellant and to this AEPD, some of which predate the response of 11/02/2022, which demonstrate that this entity was aware of the processing of personal data of users of the website that was being carried out. These indications or statements have been highlighted in the

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Legal Basis.

This can also be understood in the same way if we consider the purposes announced by the entity FGE as soon as it became aware of the right of opposition exercised by the claimant, which consisted of modifying the "Legal Notice" to ensure that the information regarding the nature of cookies is correct and establishing mechanisms for users of the website to reject cookies whose installation requires the consent of the interested parties.

Thus, the request to exercise the right of opposition obliged the responsible entity to verify the collection of personal data from the claimant to prevent its future processing, also avoiding the collection of new personal data due to visits that the claimant might make to the website in the future. The obligation to adopt measures or precautions to prevent the processing of personal data subject to

the right of opposition is concluded in the Judgment of the Supreme Court 772/2020, of June 15, which states the following:

"The sanctioned conduct of obstruction or impediment by XXX of its client's exercise of the right of opposition to the processing of their data is manifested in that said company did not adopt any kind of measure or precaution to prevent the sending of advertising to the email addresses of its client by those companies to which it entrusted the execution of advertising campaigns.

The adoption of the necessary measures or precautions to ensure the effectiveness of the right of opposition to the processing of their data by XXX, as the data controller, persists even if the advertising campaigns are not carried out based on data from its own files, but with databases from other companies contracted by XXX, and in this case, it was proven that the appellant did not communicate to the companies with which it contracted the provision of advertising services the opposition of the complainant to receiving advertising from XXX, nor did it ultimately adopt any provision to ensure the exclusion of its client from the advertising mailings contracted with third parties."

The present case is related to personal data collected through cookies, which are associated with online identifiers. This may add difficulties when marking the personal data that would effectively belong to the claimant. If that had been the case, the entity FGE would have been obliged to request additional information to correctly identify the claimant and thus be able to address the right of opposition.

In short, the entity FGE should have responded to the right of opposition exercised by the claimant by acknowledging it, which would have led to the cessation of the referenced data processing. By failing to do so, the entity FGE violated the provisions of Article 21 of the GDPR.

Having confirmed this breach, it is necessary to correct the irregular action and, for that purpose, order the entity responsible for the processing to address the request to exercise the right of opposition of the interested party, in accordance with the provisions of Article 58.2.c) of the GDPR.

However, in the present case, it is not deemed necessary to impose such measures on the responsible entity, considering that the right of opposition does not extend to past processing and that FGE, as of 03/03/2022, proceeded to disable third-party cookies on the website "fiscal.es", specifically Google Analytics cookies, using only technical cookies that are not transferred to third parties.

Furthermore, FGE has informed that it has ceased the processing of personal data that may have been transmitted to third parties until the effective disabling of the aforementioned cookies.

IV

Conclusion

Having examined the appeal for reconsideration presented by the appellant, it provides facts and arguments not taken into account in their entirety that allow for a reconsideration of the validity of the contested resolution, therefore it is appropriate to agree to its acceptance, in the terms indicated in the previous Legal Bases.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on August 8, 2022, in file PD/00142/2022. However, it is not appropriate to issue a new certification by the entity FISCALÍA GENERAL DEL ESTADO, as the processing subject to the actions has ceased.

SECOND: TO NOTIFY this resolution to A.A.A. and to the FISCALÍA GENERAL DEL ESTADO.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

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